DIGITAL MUSIC DISTRIBUTION AND SKIZA AGGREGATION AGREEMENT

THIS DIGITAL MUSIC DISTRIBUTION AND SKIZA AGGREGATION AGREEMENT (this "Agreement") is made and entered into as of the 16th day of November, 2026 (the "Effective Date"),

BY AND BETWEEN:

1. MASHARIKI DIGITAL DISTRIBUTION LIMITED, a limited liability company incorporated in the Republic of Kenya under the Companies Act, 2015, having its principal place of business at Ikigai House, General Mathenge Drive, Westlands, P.O. Box 29044-00625, Nairobi, Kenya (hereinafter referred to as the "Distributor", which expression shall where the context so admits include its successors in title and permitted assigns);

AND

2. JOHN DOE, an adult Kenyan citizen and independent recording artist and songwriter trading under the professional name "John Doe", of P.O. Box 45102-00100, Nairobi, Kenya (hereinafter referred to as the "Artist", which expression shall where the context so admits include his personal representatives, heirs, and permitted assigns).

RECITALS

A. WHEREAS, the Artist is the sole owner of the Master Sound Recordings and underlying Musical Compositions listed in Schedule 1 (and such additional recordings as the Artist may voluntarily upload to the Distributor's dashboard during the Term).

B. WHEREAS, the Distributor operates a digital music aggregation platform with direct distribution agreements with global Digital Service Providers (DSPs) and East African telecommunications Caller Ringback Tone (CRBT) platforms, including Safaricom Skiza Tunes and Airtel Hello Tunes.

C. WHEREAS, the Artist wishes to appoint the Distributor to distribute the Licensed Recordings digitally during the Term while retaining one hundred percent (100%) copyright ownership of his music, on the fair and transparent terms set out below.

NOW, THEREFORE, in consideration of the mutual covenants and promises herein contained, the Parties agree as follows:

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1. DEFINITIONS

1.1 "Digital Service Providers" or "DSPs" means consumer digital music streaming, download, and UGC monetization platforms, including Spotify, Apple Music, iTunes, Boomplay, Mdundo, Audiomack, YouTube Music, YouTube Content ID, TikTok, Meta (Instagram/Facebook Audio Library), Deezer, Amazon Music, and Tidal.

1.2 "Gross Digital Receipts" means one hundred percent (100%) of all monies actually received by the Distributor from DSPs in respect of the streaming, download, or digital exploitation of the Licensed Recordings, prior to any deduction by the Distributor for overhead, hosting, metadata encoding, or administration.

1.3 "Licensed Recordings" means the specific Master Sound Recordings, album cover artwork, and accompanying metadata delivered by the Artist to the Distributor as listed in Schedule 1, together with any future singles or albums uploaded by the Artist during the Term.

1.4 "Net Telecom Receipts" means the actual revenue received by the Distributor from Kenyan and regional telecommunications network operators (such as Safaricom PLC for Skiza Tunes and Airtel Networks Kenya Limited for Hello Tunes) after the telecommunications operator deducts its standard network infrastructure and excise share at source.

1.5 "Term" means the initial period of two (2) years commencing on the Effective Date, subject to earlier termination in accordance with Clause 9.

1.6 "Territory" means Worldwide for DSP distribution and East Africa for Telecom CRBT aggregation, unless restricted by the Artist for specific releases on the Distributor's dashboard.

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2. GRANT OF LIMITED DISTRIBUTION LICENSE

2.1 Limited License Only. Subject to the terms of this Agreement, the Artist hereby grants to the Distributor during the Term and within the Territory an exclusive license solely to:

(a) deliver, encode, distribute, and make available the Licensed Recordings on DSPs and Telecom CRBT platforms;

(b) collect Gross Digital Receipts and Net Telecom Receipts generated by the Licensed Recordings on the Artist's behalf; and

(c) display the Artist's approved name, photographs, and cover art strictly as metadata accompanying the Licensed Recordings on DSPs.

2.2 Exclusivity Limited to Delivered Tracks Only. The exclusivity granted in Clause 2.1 applies only to the specific Licensed Recordings delivered by the Artist under Schedule 1. This Agreement is not an exclusive recording contract: the Artist remains completely free during the Term to record, release, and distribute other songs or albums independently or through other distributors or labels if the Artist chooses not to upload them to the Distributor.

2.3 No Sub-Licensing or Synchronization Without Consent. The Distributor shall not synchronize, license for commercials, films, or television, remix, alter, or grant any third-party master use license for any Licensed Recording without first obtaining the Artist's express written approval for each proposed transaction and fee.

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3. 100% RETENTION OF COPYRIGHT AND MORAL RIGHTS BY ARTIST

3.1 Full Ownership Retained by Artist. Pursuant to the Copyright Act (Cap. 130, Laws of Kenya), the Artist retains one hundred percent (100%) of all right, title, and interest, including all economic copyrights, master recording rights, and publishing rights, in and to the Licensed Recordings, the underlying musical compositions (lyrics and melody), and the Artist's trademarks and artwork. Nothing in this Agreement shall operate as a copyright assignment or a "work made for hire."

3.2 Preservation of Moral Rights and Credit. The Artist's moral rights of paternity and integrity under Section 32 of the Copyright Act (Cap. 130, Laws of Kenya) are strictly preserved. The Distributor shall ensure that all metadata delivered to DSPs accurately credits "John Doe" as the primary performing artist and lists the correct songwriters, producers, and copyright line (· & © 2026 John Doe).

3.3 Independent CMO Collection Preserved. Nothing in this Agreement restricts or diminishes the Artist's right to register his works with the Kenya Copyright Board (KECOBO) or to collect broadcasting, public performance, and mechanical royalties directly through the Music Copyright Society of Kenya (MCSK), the Performers Rights Society of Kenya (PRISK), the Kenya Association of Music Producers (KAMP), or any international Collective Management Organization.

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4. ROYALTIES, TRANSPARENT SPLITS AND ZERO HIDDEN DEDUCTIONS

4.1 DSP Streaming and Download Split (85% to Artist on Gross). The Distributor shall pay to the Artist eighty-five percent (85%) of Gross Digital Receipts received from all DSPs. The Distributor shall retain fifteen percent (15%) of Gross Digital Receipts as its sole and complete distribution commission.

4.2 Telecom Skiza / CRBT Split (80% to Artist). In respect of Caller Ringback Tones (Safaricom Skiza Tunes and Airtel Hello Tunes), the Distributor shall pay to the Artist eighty percent (80%) of Net Telecom Receipts actually received by the Distributor from the telecommunications operator, and the Distributor shall retain twenty percent (20%) as its aggregation commission.

4.3 Approved Synchronization Split (85% to Artist). If the Artist approves a third-party synchronization or brand licensing opportunity introduced by the Distributor under Clause 2.3, the Artist shall receive eighty-five percent (85%) of the gross license fee paid by the licensee.

4.4 No Packaging, Container, or Free Goods Deductions. The Distributor shall not apply any packaging deduction, container charge, digital infrastructure fee, ISRC/UPC barcode fee, annual hosting fee, or "free goods" reduction against the Artist's royalties.

4.5 No Cross-Collateralization. If the Parties ever agree in writing to a separate marketing advance for a specific single or album, such advance shall only be recoupable from the royalties of that specific single or album and shall not be cross-collateralized against any live performance, publishing, or unrelated income of the Artist.

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5. MONTHLY ACCOUNTING, PAYOUTS AND AUDIT RIGHTS

5.1 Monthly Statements and 30-Day Remittance. Within thirty (30) days after the end of each calendar month, the Distributor shall publish a detailed, itemized royalty statement on the Artist's online dashboard showing every stream, download, and Skiza subscription by platform and territory, together with the exact gross receipts collected and the Artist's 85% / 80% share, and shall remit the balance due to the Artist's designated Kenyan bank account or M-Pesa account whenever the accrued balance equals or exceeds Kenya Shillings Two Thousand (KES 2,000) (and upon termination regardless of threshold).

5.2 No Artificial Reserves. Because digital streaming and download receipts are settled on verified usage reports from DSPs, the Distributor shall not withhold any rolling "reserves against returns" from the Artist's royalties.

5.3 Late Payment Interest. Any undisputed royalty payment not remitted within the thirty (30) day period under Clause 5.1 shall bear simple interest at two percent (2%) per month until paid in full.

5.4 Audit Rights. The Artist (or an independent Certified Public Accountant of Kenya appointed by the Artist) shall have the right, upon fourteen (14) days' prior written notice and up to once per calendar year, to inspect and audit the Distributor's books, records, and raw DSP/Telecom settlement statements relating to the Licensed Recordings for up to three (3) years after any statement is rendered. If any audit reveals an underpayment of five percent (5%) or more for any accounting period, the Distributor shall immediately pay the full shortfall plus interest together with the reasonable cost of the audit.

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6. RELEASE TIMELINES AND MARKETING TRANSPARENCY

6.1 Prompt Ingestion. Provided the Artist uploads compliant audio files (WAV, 16-bit/44.1kHz or 24-bit) and artwork at least ten (10) business days prior to the chosen release date, the Distributor shall ingest and deliver the Licensed Recordings to all major DSPs and Skiza portals in time for the scheduled release date.

6.2 Artist Access to Analytics. The Distributor shall immediately verify and grant the Artist full owner/admin access to the Artist's official Spotify for Artists, Apple Music for Artists, Boomplay for Artists, and YouTube Official Artist Channel profiles.

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7. WARRANTIES AND MUTUAL INDEMNIFICATION

7.1 Artist Warranties. The Artist warrants that: (a) he owns or controls the rights in the Licensed Recordings necessary to grant the distribution license in Clause 2.1; and (b) the Licensed Recordings do not contain unauthorized third-party samples that infringe another person's copyright.

7.2 Distributor Warranties. The Distributor warrants that: (a) it holds valid distribution agreements with the DSPs and Telecom operators; (b) it shall hold all Artist royalties in a segregated client trust account pending monthly disbursement; and (c) it shall comply with the Data Protection Act, 2019 (Laws of Kenya).

7.3 Mutual Indemnity and Fair Notice. Each Party shall indemnify the other against direct third-party claims arising from a proven breach of its warranties under this Clause 7. If a DSP receives a statutory copyright takedown notice concerning a specific track, the Distributor shall immediately notify the Artist in writing and allow the Artist ten (10) business days to provide proof of ownership or split sheets before freezing royalties on that specific track, and shall never freeze royalties on the Artist's other undisputed tracks.

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8. TERM AND TERMINATION

8.1 Two-Year Term with Easy Opt-Out. This Agreement shall run for an initial Term of two (2) years from the Effective Date. Thereafter, it shall renew on a rolling monthly basis until terminated by either Party on thirty (30) days' written notice. Furthermore, at any time after the first twelve (12) months of the Term, the Artist may terminate this Agreement for convenience upon giving sixty (60) days' prior written notice to the Distributor.

8.2 Termination for Material Breach. Either Party may terminate this Agreement immediately if the other Party commits a material breach (including any failure by the Distributor to render monthly statements or pay royalties when due) and fails to cure such breach within fourteen (14) days of receiving written notice thereof.

8.3 Prompt Takedown and Reversion upon Termination. Upon the expiration or termination of this Agreement for any reason:

(a) all distribution licenses granted to the Distributor shall immediately cease and revert one hundred percent (100%) to the Artist;

(b) the Distributor shall issue automated takedown notices to all DSPs and Skiza portals within fourteen (14) days (and provide the Artist with the original ISRC and UPC codes so the Artist can seamlessly re-distribute the tracks via another distributor without losing streaming play-counts or playlist placements); and

(c) the Distributor shall continue to account for and pay to the Artist 85% / 80% of all trailing royalties received from DSPs for streams that occurred prior to takedown.

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9. GOVERNING LAW AND DISPUTE RESOLUTION

9.1 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the Republic of Kenya.

9.2 Mediation and Kenyan Courts. Any dispute arising out of this Agreement shall first be referred to good-faith negotiation for fourteen (14) days, and failing resolution, to mediation in Nairobi under the Nairobi Centre for International Arbitration (NCIA) Mediation Rules, before either Party initiates proceedings before the courts of competent jurisdiction in Nairobi, Kenya.

SCHEDULE 1: INITIAL LICENSED RECORDINGS

1. Single 1: "Nairobi Nights" · Performed by John Doe (ISRC: KE-M42-26-00011, Duration: 3:28) · Master & Composition 100% Owned by John Doe.

2. Single 2: "Hakuna Matata (Acoustic Session)" · Performed by John Doe (ISRC: KE-M42-26-00012, Duration: 3:54) · Master & Composition 100% Owned by John Doe.

3. EP: "Eastlands Sunrise (5-Track EP)" · Performed by John Doe · Master & Composition 100% Owned by John Doe.

SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Digital Music Distribution and Skiza Aggregation Agreement as of the Effective Date first written above.

SIGNED for and on behalf of MASHARIKI DIGITAL DISTRIBUTION LIMITED:

Signature: _____

Name: David Kimani Njoroge

Title: Head of Artist & Label Services

Date: 16th November, 2026

SIGNED by the ARTIST:

Signature: _____

Name: JOHN DOE (p/k/a "John Doe")

Date: 16th November, 2026